AMERICAN BAR ASSOCIATION
Business Law Section

SPRING MEETING 2025

Writing for the Court, Including the Use of Artificial Intelligence

ABA Business Law Section
Judges Initiative Committee
Thursday, April 24, 2025
4:00PM to 5:30PM EST

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Moderator

Paulette Rodriguez Lopez, Associate, Crowell & Moring, LLP

Panelists

Judge Melissa Damian, United States District Court, Southern District of Florida
Chancellor Anne C. Martin, Chancery Court of Davidson County, Tennessee
Associate Professor J.W. Verret, Antonin Scalia Law School, George Mason University

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PROGRAM AGENDA

I. Introduction
II. Legal Writing and Use of AI Tools
III. Risks of Generative AI in the Courts
IV. Looking Ahead: Ensuring Compliance
V. Questions?

BACKGROUND

Artificial Intelligence vs. Generative Artificial Intelligence

- " '[A]rtificial intelligence means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations or decisions influencing real or virtual environments. Artificial intelligence systems use machine and human based inputs to— (A) perceive real and virtual environments; (B) abstract such perceptions into models through analysis in an automated manner; and (C) use model inference to formulate options for information or action.'" - National Artificial Intelligence Initiative Act of 2020

- Generative AI is "[a] field of AI that uses deep learning trained on large datasets to create content, such as written text, code, images, music, simulations and videos, in response to user prompts." – Key Terms for AI Governance, International Association of Privacy Professionals

What Are Some Potential Uses of AI Tools in Legal Writing

1. Discovery
2. Legal Research
3. Drafting Briefs
4. Editing Briefs
5. Preparing for Oral Advocacy (Argument of Deposition)

Potential Risks of Generative AI

1. Hallucinations
2. Data Bias
3. Privacy Risks
4. Intellectual Property Disputes

Ethical Considerations When Using AI In Courts

1. ABA Model Rule 1.1 – Competence
2. ABA Model Rule 1.4 – Communication
3. ABA Model Rule 1.6 Confidentiality
4. ABA Model Rule 3.3 – Candor Towards Tribunals
5. ABA Model Rules 5.1 & 5.3 – Duty to Supervise

ABA Model Rule 1.1 – Competence

"A lawyer shall provide competent representation to a client. Competent representation requires the legal knowledge, skill, thoroughness and preparation reasonably necessary for the representation."

ABA Model Rule 1.4 - Communication

"(a) A lawyer shall:

(1) promptly inform the client of any decision or circumstance with respect to which the client's informed consent, as defined in Rule 1.0(e), is required by these Rules;

(2) reasonably consult with the client about the means by which the client's objectives are to be accomplished;

(3) keep the client reasonably informed about the status of the matter;

(4) promptly comply with reasonable requests for information; and

(5) consult with the client about any relevant limitation on the lawyer's conduct when the lawyer knows that the client expects assistance not permitted by the Rules of Professional Conduct or other law.

(b) A lawyer shall explain a matter to the extent reasonably necessary to permit the client to make informed decisions regarding the representation."

ABA Model Rule 1.6 – Confidentiality

"(a) A lawyer shall not reveal information relating to the representation of a client unless the client gives informed consent, the disclosure is impliedly authorized in order to carry out the representation or the disclosure is permitted by paragraph (b).

(b) A lawyer may reveal information relating to the representation of a client to the extent the lawyer reasonably believes necessary:

(1) to prevent reasonably certain death or substantial bodily harm;

(2) to prevent the client from committing a crime or fraud that is reasonably certain to result in substantial injury to the financial interests or property of another and in furtherance of which the client has used or is using the lawyer's services;

(3) to prevent, mitigate or rectify substantial injury to the financial interests or property of another that is reasonably certain to result or has resulted from the client's commission of a crime or fraud in furtherance of which the client has used the lawyer's services;

(4) to secure legal advice about the lawyer's compliance with these Rules;

(5) to establish a claim or defense on behalf of the lawyer in a controversy between the lawyer and the client, to establish a defense to a criminal charge or civil claim against the lawyer based upon conduct in which the client was involved, or to respond to allegations in any proceeding concerning the lawyer's representation of the client;

(6) to comply with other law or a court order; or

(7) to detect and resolve conflicts of interest arising from the lawyer's change of employment or from changes in the composition or ownership of a firm, but only if the revealed information would not compromise the attorney-client privilege or otherwise prejudice the client.

(c) A lawyer shall make reasonable efforts to prevent the inadvertent or unauthorized disclosure of, or unauthorized access to, information relating to the representation of a client."

ABA Model Rule 3.3 – Candor Towards Tribunal

"(a) A lawyer shall not knowingly:

(1) make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer;

(2) fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the lawyer to be directly adverse to the position of the client and not disclosed by opposing counsel; or

(3) offer evidence that the lawyer knows to be false. If a lawyer, the lawyer's client, or a witness called by the lawyer, has offered material evidence and the lawyer comes to know of its falsity, the lawyer shall take reasonable remedial measures, including, if necessary, disclosure to the tribunal. A lawyer may refuse to offer evidence, other than the testimony of a defendant in a criminal matter, that the lawyer reasonably believes is false.

(b) A lawyer who represents a client in an adjudicative proceeding and who knows that a person intends to engage, is engaging or has engaged in criminal or fraudulent conduct related to the proceeding shall take reasonable remedial measures, including, if necessary, disclosure to the tribunal.

(c) The duties stated in paragraphs (a) and (b) continue to the conclusion of the proceeding, and apply even if compliance requires disclosure of information otherwise protected by Rule 1.6.

(d) In an ex parte proceeding, a lawyer shall inform the tribunal of all material facts known to the lawyer that will enable the tribunal to make an informed decision, whether or not the facts are adverse."

ABA Model Rule 5.1 – Responsibilities of Partners, Managers, and Supervisory Lawyers

"(a) A partner in a law firm, and a lawyer who individually or together with other lawyers possesses comparable managerial authority in a law firm, shall make reasonable efforts to ensure that the firm has in effect measures giving reasonable assurance that all lawyers in the firm conform to the Rules of Professional Conduct.

(b) A lawyer having direct supervisory authority over another lawyer shall make reasonable efforts to ensure that the other lawyer conforms to the Rules of Professional Conduct.

(c) A lawyer shall be responsible for another lawyer's violation of the Rules of Professional Conduct if:

(1) the lawyer orders or, with knowledge of the specific conduct, ratifies the conduct involved; or

(2) the lawyer is a partner or has comparable managerial authority in the law firm in which the other lawyer practices, or has direct supervisory authority over the other lawyer, and knows of the conduct at a time when its consequences can be avoided or mitigated but fails to take reasonable remedial action."

ABA Model Rule 5.3 – Responsibilities Regarding Nonlawyer Assistance

"With respect to a nonlawyer employed or retained by or associated with a lawyer:

(a) a partner, and a lawyer who individually or together with other lawyers possesses comparable managerial authority in a law firm shall make reasonable efforts to ensure that the firm has in effect measures giving reasonable assurance that the person's conduct is compatible with the professional obligations of the lawyer;

(b) a lawyer having direct supervisory authority over the nonlawyer shall make reasonable efforts to ensure that the person's conduct is compatible with the professional obligations of the lawyer; and

(c) a lawyer shall be responsible for conduct of such a person that would be a violation of the Rules of Professional Conduct if engaged in by a lawyer if:

(1) the lawyer orders or, with the knowledge of the specific conduct, ratifies the conduct involved; or

(2) the lawyer is a partner or has comparable managerial authority in the law firm in which the person is employed, or has direct supervisory authority over the person, and knows of the conduct at a time when its consequences can be avoided or mitigated but fails to take reasonable remedial action."

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Looking Ahead: Ensuring Compliance

What Measures Can Be Taken to Ensure AI Tools Are Used Responsibly In the Practice of Law?

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Examples of Judicial Guidance/Orders Relating to Use of AI Tools in Court Filings

1. *U.S. v. Hayes*, 2:24-cr-0280-DJC, 2025 WL 235531 (S.D. CA Jan. 17, 2025)
2. *Gauthier v. Goodyear Tire & Rubber Co.*, 1:23-CV-2812024 WL 4882651, (E.D. TX Nov. 25, 2024)
3. *Mata v. Avianca*, 678 F.Supp.3d 443 (S.D.N.Y 2023)

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Examples of Current Exemplar Court Standing Orders

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COURT'S STANDING ORDER ON THE USE OF GENERATIVE AI

Pursuant to the Court's inherent authority and the authority of Rule 11 of the Federal Rules of Civil Procedure, no attorney for a party, or a pro se party, may use Artificial Intelligence ("AI") in the preparation of any filing submitted to the Court. Parties and their counsel who violate this AI ban may face sanctions including, inter alia, striking the pleading from the record, the imposition of economic sanctions or contempt, and dismissal of the lawsuit. The Court does not intend this AI ban to apply to information gathered from legal search engines, such as Westlaw or LexisNexis, or Internet search engines, such as Google or Bing. All parties and their counsel have a duty to immediately inform the Court if they discover the use of AI in any document filed in their case.

IT IS SO ORDERED.

/s Christopher A. Boyko
CHRISTOPHER A. BOYKO
United States District Judge

UNITED STATES COURT OF APPEALS
FIFTH JUDICIAL CIRCUIT

COURT DECISION ON PROPOSED RULE

"The court, having considered the proposed rule, the accompanying comments, and the use of artificial intelligence in the legal practice, has decided not to adopt a special rule regarding the use of artificial intelligence in drafting briefs at this time. Parties and counsel are reminded of their duties regarding their filings before the court under Federal Rule of Appellate Procedure 6(b)(1)(B). Parties and counsel are responsible for ensuring that their filings with the court, including briefs, shall be carefully checked for truthfulness and accuracy as the rules already require. "I used AI" will not be an excuse for an otherwise sanctionable offense."

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Key Advice for Writing to the Court, With or Without Use of AI

1. Focus on Areas of Dispute and Keep it Simple and Efficient
2. Effectively Structure and Carefully Organize Your Arguments
3. Input More Data Than You Are Looking to Output
4. Check your Citations and Sources
5. Refer to and Cite Documents Effectively
6. Keep it Professional

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THANK YOU!
ANY QUESTIONS?

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